

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #05	CCRB Case #: 202004046	☒ Force ☐ Discourt. ☒ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 06/01/2020 8:36 PM	Location of Incident: East 21st Street and 3rd Avenue	18 Mo. SOL 5/4/2022	Precinct: 13
Date/Time CV Reported Sat, 06/06/2020 6:18 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 06/06/2020 6:18 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Orlando	02340	949422	013 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christian Desandis	26714	965043	013 PCT
2. POF Lily Graham	03330	966080	013 PCT
3. POM Liam Mchugh	25837	965324	013 PCT
4. POM Giovanni Albanese	14507	965922	013 PCT
5. POM Edward Griffin	05091	962449	013 PCT
6. POM Joseph Cosolito	18282	958441	013 PCT
7. SGT Ming yun Cheung	03788	942769	013 PCT
8. POF Daniela Figueroa	11917	965718	013 PCT
9. POF Kaycee Alston	08214	960156	OFSCSRG
10. POM Cristian Garcia	12258	965728	013 PCT
11. POM Chukwudalu Ejimbe	15048	966554	013 PCT
12. POM Travis Bond	12576	966468	013 PCT
13. POM John McCormick	05616	956905	013 DET
14. POM Robert Rufrano	16389	961209	013 PCT
15. POM Mahmoud Khaled	23983	963091	013 PCT
16. SGT Isaac Acevedo		931509	013 PCT
17. POM Brendan Bellew	12765	963397	013 PCT
18. POM Danny Bermeo	02101	948662	013 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Orlando	Force: Police Officer Joseph Orlando used physical force against § 87(2)(b)	A . Substantiated
B . POM Joseph Orlando	Untruthful Stmt.: Police Officer Joseph Orlando provided a misleading official statement to the CCRB.	B . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 3, 2020, § 87(2)(b) reported this incident in person at the 13th Precinct stationhouse. Captain Keung forwarded the allegations to IAB on June 5, 2020, generating original log number § 87(2)(b). On June 6, 2020, § 87(2)(b) filed this complaint on the CCRB website. On June 24, 2020, IAB forwarded their version of the complaint to the CCRB.

On June 1, 2020, at approximately 8:36 p.m., at the southeast corner of 3rd Avenue and East 21st Street in Manhattan, Police Officer Joseph Orlando of the 13th Precinct shoved § 87(2)(b) to the ground (**Allegation A: Force, substantiated**). PO Orlando subsequently provided a misleading official statement to the CCRB about this incident (**Allegation B: Untruthful Statement, substantiated**). § 87(2)(g), § 87(4-b)

The investigation obtained numerous BWC videos from officers who responded to the scene of the incident (**Board Review 01-18**, partially summarized at **Board Review 19-20**). Many of those officers responded to this incident directly from the scene of another protest incident, and the BWC footage contains depictions of both incidents. The investigation also obtained CCTV footage from cameras on a nearby building, but the footage did not capture PO Orlando's use of force (**Board Review 21**).

This case was reassigned from Inv. Faria Tasnim to Inv. Evan Tims on September 12, 2020, after Inv. Tasnim's departure from the CCRB. The case was reassigned from Inv. Tims to SI Phillips on April 21, 2021, after Inv. Tim's departure from the CCRB.

This case was significantly delayed by various factors, including the COVID19-related disruption in officer interviews, the retirements of several key officers prior to the investigation's ability to interview them, and the lack of adequate NYPD documentation regarding the deployment of the 13th Precinct's Anticrime officers during the protests. Most significantly, in late June 2020, the NYPD BWC Unit initially reported finding only two relevant BWC videos from the incident. However, in February 2021, and only after the investigation submitted another request, the BWC Unit found 15 additional videos, some of which proved crucial to the investigation's ability to ultimately identify the subject officer.

Findings and Recommendations

Allegation (A) Force: Police Officer Joseph Orlando used physical force against § 87(2)(b)

Due to the ongoing protests at the time of the incident, the 13th Precinct had erected barricades at either end of East 21st Street between 3rd Avenue and 2nd Avenue, as the 13th Precinct stationhouse and the original Police Academy are located on that block. These barricades barred vehicles and pedestrians from entering the block. Individuals who resided on the block or had other legitimate reasons for being there could approach the officers staffing the barricades, who would grant them entry. At the time of the incident, a protest march was passing the barricade on 3rd Avenue, and a large group of marchers stopped in front of the barricade and remonstrated with the officers there. Some marchers threw objects at officers, and an urgent call went over the radio requesting immediate backup at the location. Numerous officers from the 13th Precinct and other commands responded to the scene and formed a line to separate the protesters from the barricade. PO Orlando and other members of the 13th Precinct Anticrime team were among the officers who responded. Ultimately the protesters continued marching on 3rd Avenue, and no protesters were arrested or issued any summonses.

§ 87(2)(b) lived on the block and was attempting to return home at the time of the incident. He was dressed in business attire and carrying his briefcase. He testified (**Board Review 22**) that he was walking back and forth in front of the barricade and looking for a way to enter. Protestors were standing in front of the barricade. Officers began to direct civilians to move back, prompting § 87(2)(b) to turn away and begin to step away from the barricade. An officer then used two hands to forcefully shove § 87(2)(b) from behind. § 87(2)(b) was shoved with such force that he fell to the ground. His face struck the pavement, along with his palms and knees. § 87(2)(b) did not see the officer who pushed him, and initially did not know if it had been an officer or a civilian. A bystander, § 87(2)(b) told § 87(2)(b) that he had seen Police Officer Christian Desandis push him. As a result, at the time of his CCRB testimony, § 87(2)(b) believed PO Desandis was the subject officer. As will be detailed below, the investigation determined that § 87(2)(b) was mistaken and clearly did not provide accurate information to § 87(2)(b).

§ 87(2)(b) recounted that, immediately after falling, his upper lip was cut and swollen, and he had abrasions on his forehead and nose. He could feel that he was bleeding at that time. Bystanders and staff from § 87(2)(b) apartment building helped him get home. He photographed his facial injuries the following day (**Board Review 30-31**). The photographs show significant swelling and a number of small cuts about his upper lip, further cuts and abrasions to the tip and bridge of his nose, and abrasions on his forehead. § 87(2)(b) also reported that he sustained a cut on his left knee and multiple cuts on his hands. He did not obtain formal medical treatment for his injuries.

There was no BWC footage from PO Orlando or from any of the other plainclothes officers with whom he was working. However, his use of force was captured by Police Officer Liam McHugh's BWC (**Board Review 01**). The footage captures the incident from 00:30 to 00:55. The footage captures PO Orlando arriving in an unmarked vehicle at the southwest corner of 3rd Avenue and East 21st Street. It shows that PO Orlando, Sgt. Acevedo, and one other officer moved north along the north-south crosswalk on the west side of 3rd Avenue. At this time, protestors were gathered in the street on 3rd Avenue, with § 87(2)(b) and a handful of other civilians standing in the crosswalk. The barricades were erected along the western edge of the crosswalk. None of the civilians was attempting to climb or move the barricades at that time. PO Orlando physically shoved some civilians while he and the other plainclothes officers directed people to move back out of the crosswalk. The footage does not capture the seconds before PO Orlando shoved § 87(2)(b) but it does show that PO Orlando placed two hands on § 87(2)(b) back and shoved § 87(2)(b) to the ground. At this time, § 87(2)(b) had his back to the barricade and was standing on the sidewalk more than five feet away.

PO Orlando confirmed during his CCRB interview that he was present during this incident (**Board Review 23**). He recounted that, when he arrived on the scene, all of the other officers were gathered behind the barricade, and the civilians were gathered in front of the barricade, including an unknown number of civilians who were making physical contact with the barricade and attempting to breach it. He specifically recounted that protestors were pushing on the barricade with their hands, attempting to jump over the barricade, and attempting to squeeze between gaps in the barricade. PO Orlando and other officers from his team moved in front of the barricade, and PO Orlando ordered civilians to move back and used his hands to push them back. PO Orlando claimed that he could not recall whether any of the civilians he pushed fell to the ground as a result. He could not describe any of the civilians he pushed. He did not recall pushing any man dressed in business attire, and he did not recall a tall Asian man being near the barricade.

Upon viewing the BWC footage discussed above, PO Orlando stated that was not sure whether he was the officer in the footage. He affirmed that he still did not recall shoving § 87(2)(b) to the ground. PO Orlando viewed other videos and screenshots capturing the subject officer during this

incident and at an incident which occurred immediately beforehand, and he maintained throughout that he could not tell if the officer was him. He confirmed that he was wearing a COVID mask at the time of the incident, but he could not say if it was similar to the one worn by the subject officer in the video footage. He was unable to recall any of the Anticrime officers with whom he responded to the incident, though he later confirmed that PO Bermeo was pictured in footage from the location. He explained that the 13th Precinct Anticrime officers did not have steady partners during the protests, and instead worked in constantly shifting teams which often swapped members and vehicles.

The investigation was able to confirm that the unmarked vehicle from which the subject officer exits in the BWC footage was being used at the time of the incident by the 13th Precinct Anticrime team. There were five plainclothes officers in that vehicle, and the investigation identified two of them as Sergeant Isaac Acevedo and Police Officer Danny Bermeo. Sgt. Acevedo, who retired before the investigation could interview him, was one of the 13th Precinct Anticrime supervisors at the time, while PO Bermeo was and remains a member of the Anticrime team with PO Orlando. Lieutenant James Grillo was the 13th Precinct Special Operations Lieutenant at the time and thus supervised the entire Anticrime unit, but he also retired before the investigation could interview him.

The investigation identified all the officers who were members of the 13th Precinct Anticrime team at the time of the incident and interviewed a number of them during the course of the investigation: Sgt. Faini, PO Bermeo, PO Rattan, PO Blum, PO McCormick, and PO Rufrano. None of the interviewed officers claimed to be able to identify the subject officer from the BWC footage, but none of them denied that it could be PO Orlando. Significantly, after being questioned specifically about PO Orlando, PO Rattan readily acknowledged that the subject in the video did appear to be PO Orlando. The investigation also reviewed officer testimony and BWC footage documenting the participation of 13th Precinct Anticrime officers in other protest incidents from the days surrounding this incident, and the investigation obtained MOS photographs and pedigree information for members of the 13th Precinct Anticrime team. The large majority of these officers could be ruled out as the subject officer simply based upon their physical appearances being entirely inconsistent with the appearance of the subject officer in the footage. In fact, only PO Orlando's height, weight, and appearance appeared entirely consistent with the appearance of the subject officer. PO Orlando's MOS photograph (**Board Review 32**) shows that his facial structure is consistent with that of the subject officer (see a folder of screenshots showing the best views of the plainclothes team and the subject officer's face at **Board Review 33**).

Based upon the above-described evidence, and especially based upon PO Orlando's conspicuous failure to deny that he was the subject officer seen in the video footage, the investigation determined that he was the officer who shoved § 87(2)(b).

Patrol Guide Procedure 221-01 (Board Review 24) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.

§ 87(2)(g) was not standing near the barricade at the time. In fact, he had his back turned and was moving away from the barricade. He was not doing anything to indicate that he posed a safety threat to anyone on scene, and PO Orlando was not attempting to place him in custody. The injuries sustained by § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as substantiated.

Allegation (B) Untruthful Statement: Police Officer Joseph Orlando provided a misleading official statement to the CCRB.

There is evidence suggesting that PO Orlando provided a misleading official statement to the CCRB.

As noted above, PO Orlando testified that he recalled this incident, and further testified that he recalled shoving civilians back from the barricade. When asked about the specific allegation, however, PO Orlando testified that he did not recall whether he shoved anyone to the ground. The following verbatim exchanged occurred during PO Orlando's interview, from 10:20 to 10:30:

CCRB Investigator: "Did any of the people who you pushed out of the way fall to the ground?"
PO Orlando: "I don't recall."

PO Orlando was subsequently shown BWC footage of this incident, along with screenshots from footage showing close-up images of him and his clothing during the incident. PO Orlando testified that he could not say whether or not he was the officer in the videos and photographs, because that officer was wearing a mask. Moreover, he maintained that he still could not recall if he shoved § 87(2)(b) to the ground even after reviewing the video footage showing him do so. The following verbatim exchange occurred during PO Orlando's interview from 1:01:10 through 1:01:28:

CCRB Investigator: "I just saw a male with dark pants and a white top go down to the ground. Officer, did you see that in the footage?"

PO Orlando: "Yes"

CCRB Investigator: "That's the incident we're interviewing you about. Did you do that?"

PO Orlando: "I think that's not me? I can't tell if that's me."

CCRB Investigator: "You don't know if that's you or not? Okay. But now that you're seeing this, does this refresh your recollection of doing something like that?"

PO Orlando: "No."

Patrol Guide Procedure 203-08 categorically prohibits officers from intentionally making misleading official statements. A misleading official statement is: "A statement that is intended to misdirect the fact finder, and materially alter the narrative by: (a) Intentionally omitting a material fact or facts; (b) Making repeated claims of "*I do not remember*" or "*I do not know*" when a reasonable person under similar circumstances would recall, or have been aware of, such material facts; or (c) Altering and/or changing a member's prior statement or account when a member of the service is confronted with independent evidence indicating that an event did not occur as initially described." A material fact is defined as: "A significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail." Statements made during an official CCRB interview are covered by this Procedure (**Board Review 34**).

is true that he was not interviewed until approximately 14 months after the incident, PO Orlando clearly recalled the incident in some detail. In fact, he was able to provide a generally accurate account of his actions on scene, *except* for his specific failure to recall whether he committed the use of force under investigation. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation B** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 28**).
- PO Orlando has been a member of the NYPD for 11 years and has been subject to one previous CCRB complaint and two allegations, which were not substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 31, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (**Board Review 29**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 5

Investigator: DG IM Giansante for SI Phillips September 11, 2021
Signature Print Title & Name Date

Squad Leader: Daniel Giansante IM Daniel Giansante September 11, 2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date